

25STCV36453 25STCV36453

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-09-11

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Case Number: 25STCV36453 Hearing Date: September 11, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT

17

TENTATIVE RULING

BLAINE STAFFIERI

vs.

FCA US, LLC, et al.

Case

No.: 25STCV36453

Hearing Date: September 11, 2026

Defendant's

motion to compel Plaintiff's compliance pursuant to CCP section 871.26 is MOOT.

Plaintiff is sanctioned, jointly and severally with counsel, \$1,500, due within

30 days of entry of order.

On

12/15/2025, Plaintiff Blaine Staffieri (Plaintiff) filed suit against FCA US, LLC, and Lake Elsinore Chrysler Dodge Jeep Ram, alleging violations of the Song-Beverly Warranty Act.

On

5/11/2026, Defendant moved to compel Plaintiff's compliance pursuant to CCP section 871.26.

Discussion

Defendant

moves for an order for compliance requiring Plaintiff to provide the complete production of documents and written disclosure of information required under Code of Civil Procedure subsections 871.26, subdivision (b).

The enactment

of Assembly Bill 1755 was codified in Chapter 12 of Title 10 to Part 2 of the Code of Civil Procedure (herein, Chapter 12), which went into effect 1/1/2025.

(See CCP § 871.20, et seq.) In passing Assembly Bill 1755, the legislature

enacted provisions that identified a series of written disclosures that a

plaintiff must provide to all other parties within sixty days of the filing of

the responsive pleading. (CCP § 871.26, subd. (g).) Furthermore, the

Legislature identified a series of seven discrete categories of documents that a plaintiff must also produce within sixty days of the filing the responsive pleading: (1) Sales or lease agreement. (2) Copy of current registration. (3) Any finance information, account information, including payment history and estimated payoff amount, and any loan modification agreements. (4) Any repair orders, including to third-party repair facilities or the location of where information relating to repair orders may be found. (5) Documents detailing all underlying claimed incidental damages. (6) Information pertaining to the market value of the motor vehicle that is currently in the consumer's possession. (7) Any written, pre-suit communications with the manufacturer, including, but not limited to, any restitution or replacement request. (CCP § 871.26, subd. (f).)

In

a late-filed opposition, Plaintiff argues the motion is moot because:

FCA's Motion

rests on a single premise: that Plaintiff had "not disclosed documents and information" required by Code of Civil Procedure section 871.26. That premise is no longer accurate. On June 16, 2026, and well before the September 11, 2026 hearing, Plaintiff served on FCA their Initial Disclosures Pursuant to Civil Code Section 871.26(f) and (g), together with a Bates-stamped document production numbered STA000001 through STA000036. (Pan Decl., ¶¶ 6, 7.) Service

is documented by a proof of service executed the same day. (Pan Decl., ¶ 8.)

The disclosures respond to each of the seven document categories under subdivision (f) and each of the eleven information categories under subdivision (g). (Pan Decl., ¶ 9.) There is nothing left for the Court to compel.

However,

this ignores the fact that Plaintiff was required to have made his initial disclosures and document production by 4/19/2026, 60 days after the filing of the Complaint of 12/15/2025, not on 6/16/2026 when Plaintiff did finally make the disclosures.

Accordingly,

while the substance of the motion is now moot, the Court still finds sanctions to be warranted.

Based on the

foregoing, Defendant's motion to compel Plaintiff's compliance pursuant to CCP section 871.26 is moot. Plaintiff is sanctioned, jointly and severally with counsel, \$1,500, due within 30 days of entry of order.

It is so ordered.

Dated: September

, 2026

Hon. Jon R.

Takasugi

Judge of the

Superior Court

Parties who intend to submit on this tentative must

send an email to the court at smcdept17@lacourt.org

by 4 p.m. the day prior as directed by the instructions provided on the court

website at www.lacourt.org. If a party submits

on the tentative, the party's email must include the case number and must

identify the party submitting on the tentative.

If all parties to a motion submit, the court will adopt this

tentative as the final order. If the department

does not receive an email indicating the parties are submitting on the

tentative and there are no appearances at the hearing, the motion may be placed

off calendar. For more information, please contact the court clerk at (213)

633-0517.